

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
RONNELL YARBOROUGH,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. HARRIGAN, Tax
Registry No. 950561 and POLICE OFFICER
"JOHN DOE" (Tax Registry No. unknown at
this time) employed by The City of New York and
The New York City Police Department in their
official and individual capacity and assigned
to the Transit District Police Precinct,

Defendants.
-----X

Index No.:

SUMMONS WITH NOTICEPlaintiff designates New York
County as the place of trial.The basis of venue is locus of
occurrence:

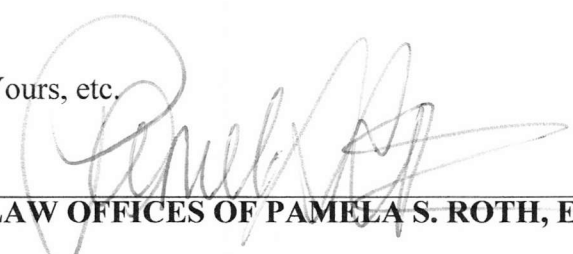
County of New York

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to appear and answer the complaint in their action
and to serve a copy of your answer, or, if the complaint is not served with the summons, to serve
a notice of appearance, on the Plaintiff's attorney(s) within 20 days after the service of the
summons, exclusive of the day of service (or within 30 days after the service is complete if the
summons is not personally delivered to you within the State of New York); and in case of your
failure to appear or answer, judgment will be taken against you by default for the relief
demanded herein.

Dated: Brooklyn, New York
January 4, 2016

Yours, etc.


LAW OFFICES OF PAMELA S. ROTH, ESQ. P.C.

By:

PAMELA S. ROTH, ESQ.
Attorney for Plaintiff
RONNELL YARBOROUGH
Office & P.O. Address
9118 Fifth Avenue
Brooklyn, NY 11209
(718) 836-9118

Defendant's address:

Corporation Counsel of the City of New York
Attorneys for The City of New York and
The New York City Police Department
100 Church Street
New York, New York 10007

P.O. Harrigan Shield Number 950561
New York City Police Department
Transit District Police Precinct
130 Livingston Street, 3rd Floor
Brooklyn, NY 11201

Notice:

The nature of the action is **PERSONAL INJURY/FALSE ARREST/
UNLAWFUL DETENTION/USE OF EXCESSIVE FORCE**

The relief sought is: **MONETARY DAMAGES**

Upon your failure to appear, judgment will be taken against you by default in a sum that exceeds the jurisdictional limits of all lower courts, with interest from the date of judgment, attorneys' fees and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RONNELL YARBOROUGH,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. HARRIGAN, Tax
Registry No. 950561 and POLICE OFFICER
"JOHN DOE" (Tax Registry No. unknown at
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Index No.:

VERIFIED COMPLAINT

Plaintiff, RONNELL YARBOROUGH, by his attorneys, LAW OFFICES OF
PAMELA S. ROTH, ESQ. P.C., alleges at all times hereinafter mentioned and upon information
and belief that:

1. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, was
and still is a municipal corporation duly organized and existing under the laws of the State of
New York.

2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, its
agents, servants and employees operate, maintained and controlled the Police Department of the
City of New York, including all police officers thereof.

3. At all times hereinafter mentioned, Defendant, THE NEW YORK CITY POLICE
DEPARTMENT, was and still is a municipal corporation duly organized and existing under the
laws of the State of New York.

4. At all times hereinafter mentioned, and on or prior to the 13th day of December, 2014, Defendant, P.O. HARRIGAN, Tax Registry No. 950561 (hereinafter referred to as “HARRIGAN”) was employed by the Defendant, THE CITY OF NEW YORK, as a police officer.

5. At all times hereinafter mentioned, and on or prior to the 13th day of December, 2014, Defendant POLICE OFFICER “JOHN DOE” (Tax Registry No. unknown at this time) employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the Transit District Police Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as a police officer.

6. At all times hereinafter mentioned, Defendant, HARRIGAN, was acting within the scope of his employment as a police officer with the Police Department of The City of New York.

7. At all times hereinafter mentioned, Defendant, HARRIGAN, was acting under color of law and authority as a police officer with the Police Department of The City of New York and assigned to the Transit District police command.

8. At all times hereinafter mentioned, Defendant, POLICE OFFICER “JOHN DOE” (Tax Registry No. unknown at this time), was acting within the scope of their employment as a police officer with the Police Department of The City of New York.

9. At all times hereinafter mentioned, Defendants, POLICE OFFICER “JOHN DOE” (Tax Registry No. unknown at this time), was acting under color of law and authority as a police officer with the Police Department of The City of New York and assigned to the Transit District police command.

10. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK has established and maintains a Department of Police as a constituent department or agency of the Defendant.

11. Defendant, THE CITY OF NEW YORK, is and was at all times relevant herein a Municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant, THE CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by the New York City Police Department.

12. At all times hereinafter mentioned Defendant, THE CITY OF NEW YORK, employed P.O. HARRIGAN, and another police officer herein named as JOHN DOE.

13. At all relevant times, the individual defendants were acting pursuant to their authority as NEW YORK CITY POLICE DEPARTMENT employees. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful function as agents, servants and employees of the NEW YORK CITY POLICE DEPARTMENT.

14. Plaintiff, RONNELL YARBOROUGH is twenty-seven (27) years of age and resides alone at Bronx Park East, Apt. M2, Bronx, New York 10467, and all times relevant herein he has been a resident of the United States of America, the State of New York and the County of Bronx.

15. On March 13, 2015, and within ninety (90) days of the occurrence complained of hereinafter, Plaintiff, RONNELL YARBOROUGH, duly served a Notice of Claim upon the City of New York in the manner and mode required by law.

16. That a hearing has been held pursuant to Section 50(h) of the General Municipal Law on the 7th day of July, 2015.

17. That this action is commenced within one year and ninety days from the date of occurrence complained of herein and that Plaintiff has complied with all conditions precedent applicable to the instant action.

FIRST CAUSE OF ACTION

18. Plaintiff, RONNELL YARBOROUGH, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

19. On December 13, 2014, at approximately 12:30 a.m., in a long passageway underground between 14th Street on way to the PATHTRAIN, in the city of New York, County of New York, State of New York, the Defendants, their agents, servants and/or employees wrongfully arrested, imprisoned, detained, assaulted and battered Plaintiff, RONNELL YARBOROUGH, without any right or grounds thereof.

20. Defendant "JOHN DOE" immediately handcuffed Plaintiff without apprising him as to why he was being placed under arrest, never read him his Miranda rights, and purposefully tightened the handcuffs painfully on Plaintiff's wrists.

21. Defendant "JOHN DOE" told Plaintiff to "shut up" when he complained of pain, then punched him in the stomach.

22. Defendant HARRIGAN, punched Plaintiff in the face and genitals.

23. Plaintiff fell to the ground screaming for help and Defendants HARRIGAN and JOHN DOE carried him upstairs.

24. Plaintiff was having difficulty breathing due to the unprovoked assault and vicious beating.

25. Defendant "JOHN DOE" intentionally dropped Plaintiff on the floor twice while carrying him up the stairs to the police wagon.

26. Said detention, arrest, imprisonment, assault, and battery were caused by the Defendants, their agents, servants and/or employees without probable cause and/or justification.

27. Defendants, through their agents, servants and/or employees, acted in bad faith and without probable cause in committing the aforementioned arrest, detention, imprisonment, assault and battery of Plaintiff, RONNELL YARBOROUGH.

28. Defendants, their agents, servants and/or employees, intended to confine the Plaintiff, RONNELL YARBOROUGH, in that Plaintiff was conscious of the confinement; Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

29. At the time of his unlawful arrest, detention and imprisonment, Plaintiff, RONNELL YARBOROUGH, had not committed or attempted to commit any illegal act or crime.

30. At the time of Plaintiff, RONNELL YARBOROUGH, unlawful arrest, Defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned arrest and detention were false and without probable cause.

31. Said false arrest and false imprisonment cause Plaintiff, RONNELL YARBOROUGH, to suffer physical injuries, emotional and psychological distress, anguish anxiety, fear, humiliation, loss of freedom and damage to his reputation.

32. Defendants HARRIGAN and his partner POLICE OFFICER JOHN DOE, placed him under arrest, never apprising Plaintiff as to why he was being arrested nor the criminal charges they were filing against him.

33. Plaintiff, RONNELL YARBOROUGH, was told by members of the New York City Police Department that he was being arrested for jumping a turnstile.

34. Plaintiff, RONNELL YARBOROUGH, was in police custody, was unlawfully detained and falsely imprisoned for approximately 24 hours in the holding cell.

35. Plaintiff, RONNELL YARBOROUGH, was in police custody, was unlawfully detained and falsely imprisoned. The unlawful search and seizure was without due process of law and was done to deprive Plaintiff of his rights as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

36. It is alleged that Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, HARRIGAN and POLICE OFFICER JOHN DOE failed to investigate the facts, and therefore maliciously and intentionally detained, falsely detained, falsely imprisoned, and humiliated Plaintiff, RONNELL YARBOROUGH, in violation of his constitutional rights.

37. Defendants HARRIGAN and JOHN DOE denied him food, water and medical attention even after Plaintiff disclosed his severe medical condition to them.

38. Plaintiff was denied his prescription medication for three days.

39. Plaintiff, RONNELL YARBOROUGH, was released from police custody on December 14, 2014.

40. As a direct result of the above Defendants' actions, Plaintiff, RONNELL YARBOROUGH, suffered and continues to suffer mental anguish, deprivation of liberty and privacy, humiliation, shame, emotional distress and damage to reputation, some or all of which may be permanent.

41. Plaintiff, RONNELL YARBOROUGH, suffered greatly and was emotionally traumatized by this excessive detention and imprisonment.

42. The false criminal arrest and wrongful imprisonment of Plaintiff, RONNELL YARBOROUGH, because of Defendants' knowledge of a lack of any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.

43. As a direct and proximate result of Defendants' actions, Plaintiff, RONNELL YARBOROUGH, was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the City and the State of New York.

44. As a result of the foregoing, Plaintiff, RONNELL YARBOROUGH, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. HARRIGAN, Tax Registry No. 950561 and POLICE OFFICER "JOHN DOE" (Tax Registry No. unknown at this time) employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the Transit District Police Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SECOND CAUSE OF ACTION

45. Plaintiff, RONNELL YARBOROUGH, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

46. On December 13, 2014, at approximately 12:30 a.m., while Plaintiff, RONNELL YARBOROUGH, was lawfully in a long passageway underground between 14th Street on way to the PATHTRAIN, in the city of New York, County of New York, State of New York, he was assaulted, battered by police officers employed by Defendant, THE CITY OF NEW YORK, including HARRIGAN and POLICE OFFICER JOHN DOE.

47. On December 13, 2014, at approximately 12:30 a.m., while Plaintiff, RONNELL YARBOROUGH, was lawfully in a long passageway underground between 14th Street on way to the PATHTRAIN, in the city of New York, County of New York, State of New York, Defendant HARRIGAN, a police officer employed by Defendant, THE CITY OF NEW YORK, intentionally punched Plaintiff in the face and genitals.

48. On December 13, 2014, at approximately 12:30 a.m., while Plaintiff, RONNELL YARBOROUGH, was lawfully in a long passageway underground between 14th Street on way to the PATHTRAIN, in the city of New York, County of New York, State of New York, Defendant POLICE OFFICER JOHN DOE, a police officer employed by Defendant, THE CITY OF NEW YORK, intentionally punched Plaintiff in the stomach.

49. As a result of the above mentioned unprovoked assault and battery, and intentionally punching Plaintiff in the stomach, face, and genitals, Plaintiff, RONNELL YARBOROUGH, was injured, internally and externally, became sick, sore, lame and disabled and was caused to suffer and still suffers severe and permanent injuries, and upon information

and belief, will continue to suffer pain and discomfort; and was caused to obtain medical care and attention in an attempt to cure himself of said injuries.

50. As a result of the foregoing, Plaintiff, RONNELL YARBOROUGH, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. HARRIGAN, Tax Registry No. 950561 and POLICE OFFICER "JOHN DOE" (Tax Registry No. unknown at this time) employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the Transit District Police Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THIRD CAUSE OF ACTION

51. Plaintiff, RONNELL YARBOROUGH, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

52. The actions of Defendants heretofore described constitute an unlawful arrest, unlawful detention, false imprisonment, wrongful imprisonment, assault and battery, all in violation of Plaintiff, RONNELL YARBOROUGH, civil rights.

53. Defendants deprived Plaintiff, RONNELL YARBOROUGH, of his liberty in violation of his civil and constitutional rights, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

54. Defendants violated the civil and constitutional rights of Plaintiff, RONNELL YARBOROUGH, as set forth in the Constitution of the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

55. Defendants' actions were undertaken under color of law and would not have existed but for said defendants using their official power.

56. The supervisors and policy making officers of Defendant, THE CITY OF NEW YORK, and its Police Department, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

57. Defendant, THE CITY OF NEW YORK, and its Police Department, has failed to properly or effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

58. Defendant, THE CITY OF NEW YORK, and its Police Department, has sanctioned the above described policy and practices through its deliberate indifference to the effect of said policy upon the constitutional and civil rights of Plaintiff, RONNELL YARBOROUGH, and others similarly situated.

59. That Defendants' motivations were in contravention of the U.S. Constitution and the Constitution of the State of New York.

60. As a result of the foregoing, Plaintiff, RONNELL YARBOROUGH, has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

61. As a result of the foregoing, Plaintiff, RONNELL YARBOROUGH, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. HARRIGAN, Tax Registry No. 950561 and POLICE OFFICER "JOHN DOE" (Tax Registry No. unknown at this time) employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the Transit District Police Precinct, were employed by the Defendant, THE CITY OF NEW YORK,

as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION

62. Plaintiff, RONNELL YARBOROUGH, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

63. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including Defendants, HARRIGAN and POLICE OFFICER JOHN DOE with knowledge that said police officers lacked the experience to be employed by the aforementioned Defendant, and therefore, were unfit to be police officers.

64. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including Defendants, HARRIGAN and POLICE OFFICER JOHN DOE with knowledge that said police officers lacked the deportment to be employed by the aforementioned Defendant, and were, therefore, unfit to be police officers.

65. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including Defendants, HARRIGAN and POLICE OFFICER JOHN DOE with knowledge that said police officers lacked the experience to be employed by the aforementioned Defendant, and therefore, were unfit to be police officers.

66. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including Defendants, HARRIGAN and POLICE OFFICER JOHN DOE with knowledge that said police officers had vicious propensities and were therefore unfit to be police officers.

67. As a result of the foregoing, plaintiff, RONNELL YARBOROUGH, has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

68. As a result of the foregoing, Plaintiff, RONNELL YARBOROUGH, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. HARRIGAN, Tax Registry No. 950561 and POLICE OFFICER "JOHN DOE" (Tax Registry No. unknown at this time) employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the Transit District Police Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION

69. Plaintiff, RONNELL YARBOROUGH, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

70. On December 13, 2014, Defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees, did maliciously cause a criminal prosecution to be commenced against Plaintiff, RONNELL YARBOROUGH, by filing an accusatory instrument, without probable cause and in bad faith.

71. Plaintiff had not committed any illegal acts.

72. Plaintiff had not given Defendants, its agents, servants and/or employees probable cause to believe that he had committed the illegal acts hereinafter complained of.

73. Defendants knew, or should have known through the exercise of reasonable care and proper police procedure, that said investigation was flawed or incomplete.

74. As a result of the foregoing malicious prosecution, Plaintiff, RONNELL YARBOROUGH, suffered and continues to suffer, substantial and permanent damages.

75. Said malicious prosecution caused Plaintiff, RONNELL YARBOROUGH, to sustain severe emotional distress, emotional disturbances, humiliation and damage to his reputation, including the stigma of having a criminal record.

76. As a result of the foregoing, Plaintiff, RONNELL YARBOROUGH, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. HARRIGAN, Tax Registry No. 950561 and POLICE OFFICER "JOHN DOE" (Tax Registry No. unknown at this time) employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the Transit District Police Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SIXTH CAUSE OF ACTION

77. Plaintiff, RONNELL YARBOROUGH, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

78. Defendants, their agents, servants and/or employees negligently, carelessly and recklessly performed their police duties in that they failed to exercise such care in the performance of their police duties as a reasonably prudent police officer would have used under similar circumstances.

79. That the aforementioned occurrences, to wit: the false arrest, detainment, unlawful arrest, unlawful and false imprisonment of Plaintiff, RONNELL YARBOROUGH; the

assault and battery committed by Defendants against Plaintiff, RONNELL YARBOROUGH; the intentional punching Plaintiff in the stomach, face, and genitals thereby causing him physical injury, pain and suffering; the violation of Plaintiff's civil and constitutional rights; the malicious prosecution of Plaintiff, RONNELL YARBOROUGH; and the resulting injuries to the mind and body therefrom; were caused solely by reason of the negligence of the Defendants, their agents, servants and/or employees, without any negligence on the part of the Plaintiff, RONNELL YARBOROUGH.

80. As a result of the foregoing, Plaintiff, RONNELL YARBOROUGH, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. HARRIGAN, Tax Registry No. 950561 and POLICE OFFICER "JOHN DOE" (Tax Registry No. unknown at this time) employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the Transit District Police Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SEVENTH CAUSE OF ACTION

81. Plaintiff, RONNELL YARBOROUGH, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

82. Defendants' conduct towards Plaintiff, was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

83. Defendants' acted with the desire to cause Plaintiff, RONNELL YARBOROUGH, mental distress and physical distress and pain or acted under circumstances

known to them which made it substantially certain that they would cause such mental and physical distress.

84. Defendants acted with utter disregard of the consequences of their actions.

85. As a result of the foregoing, Plaintiff, RONNELL YARBOROUGH, has sustained severe and debilitating emotional and psychological distress, anguish, anxiety, fear, humiliation, and soreness.

86. As a result of the foregoing, Plaintiff, RONNELL YARBOROUGH, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. HARRIGAN, Tax Registry No. 950561 and POLICE OFFICER "JOHN DOE" (Tax Registry No. unknown at this time) employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the Transit District Police Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**EIGHTH CAUSE OF ACTION
42 .S.C. § 1983 - FAILURE TO INTERCEDE**

87. Plaintiff, RONNELL YARBOROUGH, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

88. Upon information and belief, Defendant THE CITY OF NEW YORK, through the Defendants P.O. HARRIGAN, and POLICE OFFICER "JOHN DOE" (Tax Registry No. unknown at this time) employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the Transit District Police

Precinct, by their conduct and under color of state law, it is believed that these two Defendant officers each had opportunities to intercede on behalf of Plaintiff RONNELL YARBOROUGH to prevent the excessive use of force but due to their intentional conduct or deliberate indifference declined or refused to do so.

89. As a direct and proximate result, Plaintiff suffered the injuries and damages described above.

90. As a result of the foregoing, Plaintiff, RONNELL YARBOROUGH, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. HARRIGAN, Tax Registry No. 950561 and POLICE OFFICER "JOHN DOE" (Tax Registry No. unknown at this time) employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the Transit District Police Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THE ITEMS OF DAMAGE OR INJURIES CLAIMED

91. That by reason of the foregoing, Plaintiff, RONNELL YARBOROUGH, was severely injured and damaged, sustained personal injuries, bruises, contusions, trauma, mental distress and other injuries; his civil rights were violated and he sustained medical expenses. Plaintiff was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries, and Plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and Plaintiff will be unable to pursue the

usual duties with the same degree of efficiency as prior to this occurrence, all to Plaintiff's great damage.

92. Plaintiff RONNELL YARBOROUGH suffered a deprivation of his civil rights and liberty, was falsely arrested, falsely imprisoned, the use of excessive and unnecessary force was used against him, beaten, battered, assaulted, humiliated, embarrassed, unlawfully detained, suffered emotional harm, shock, was falsely imprisoned for approximately one (1) night without judicial process, loss of reputation in the community, loss of self esteem, fear and anxiety as a result of this incident.

93. Plaintiff RONNELL YARBOROUGH felt grave fear and intimidation for his safety and wellbeing by virtue of the intentional, deliberate and malicious acts of the Police Officers from the Transit District Police Precinct.

94. Plaintiff was deprived of his freedom and liberty.

95. As a result of the aforementioned, Defendants violated the rights of Plaintiff, RONNELL YARBOROUGH, secured to him under the 8th Amendment and 14th Amendment of the Constitution of the United States of America, and under 42 U.S.C. §1983.

96. Plaintiff, RONNELL YARBOROUGH, was caused to be injured, and to undergo pain and suffering as a result of the aforementioned willful, wanton and deliberate indifference on the part of Defendants.

97. Defendants failed to protect Plaintiff, RONNELL YARBOROUGH, while he was in custody thereby causing him to sustain severe and permanent injuries, pain and suffering.

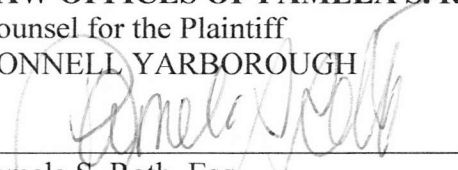
98. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986 and under New York State Law.

99. As a result of the aforesaid, Plaintiff, RONNELL YARBOROUGH, was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff, RONNELL YARBOROUGH respectfully demands judgment against Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. HARRIGAN, Tax Registry No. 950561 and POLICE OFFICER "JOHN DOE" (Tax Registry No. unknown at this time) employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the Transit District Police Precinct, and requests the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of reasonable attorney's fee, costs and disbursements of this action; such other and further relief as this Court may deem just, fair and proper under the circumstances.

Dated: Brooklyn, New York
January 4, 2016

Respectfully submitted,
LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.
Counsel for the Plaintiff
RONNELL YARBOROUGH

By: 
Pamela S. Roth, Esq.
9118 Fifth Avenue
Brooklyn, New York 11209
(718) 836-9118

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RONNELL YARBOROUGH,

Plaintiff,

VERIFICATION

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. HARRIGAN, Tax
Registry No. 950561 and POLICE OFFICER
"JOHN DOE" (Tax Registry No. unknown at
this time) employed by The City of New York and
The New York City Police Department in their
official and individual capacity and assigned
to the Transit District Police Precinct,

Defendants.

-----X
PAMELA S. ROTH, an attorney duly admitted to practice in the Court of the State of
New York, states:

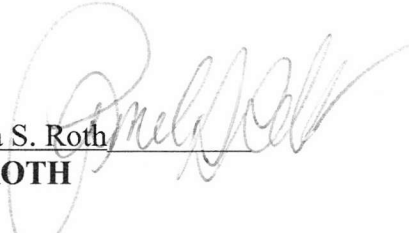
That I am a member of **THE LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.**,
attorneys of record for Plaintiff in the within action. I have read the foregoing *Summons and
Verified Complaint* and know the contents thereof; the same is true to my own knowledge
except as to those matters therein alleged to be on information and belief and as to those matters,
I believe them to be true.

The reason this Verification is made by me and not by Plaintiff is that the residence of
Plaintiff is outside the County wherein your deponent maintains her office.

The grounds of my belief as to all matters not stated upon my own knowledge are
information, books, records, data and correspondence contained in deponent's file and
conversation had with the plaintiff herein.

I affirm that the foregoing statements are true under the penalty of perjury.

Dated: Brooklyn, New York
January 4, 2016



Pamela S. Roth
PAMELA S. ROTH

CERTIFICATION

STATE OF NEW YORK)

) ss.:

COUNTY OF KINGS)

PAMELA S. ROTH, an attorney duly admitted to practice in the Court of the State of New York, states:

That I am a member of **THE LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.**, attorneys of record for Plaintiff in the within action. I hereby certify, pursuant to 22 NYCRR 130-1.1(a) and after performing an inquiry reasonable under the circumstances, that the within ***Summons and Verified Complaint*** and its respective contentions, are not frivolous as set forth in and defined by 22 NYCRR 130-1.1(c).

Dated: Brooklyn, New York
January 4, 2016

Pamela S. Roth
PAMELA S. ROTH



**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

INDEX NO.

RONNELL YARBOROUGH,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. HARRIGAN, Tax
Registry No. 950561 and POLICE OFFICER
"JOHN DOE" (Tax Registry No. unknown at
this time) employed by The City of New York and
The New York City Police Department in their
official and individual capacity and assigned
to the Transit District Police Precinct,

Defendants.

SUMMONS WITH NOTICE AND VERIFIED COMPLAINT

LAW OFFICES OF PAMELA S. ROTH, ESQ. P.C.

Attorney for Plaintiff

RONNELL YARBOROUGH

Office & P.O. Address

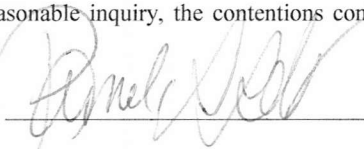
9118 Fifth Avenue

Brooklyn, NY 11209

(718) 836-9118

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 1/4/2016

Signature: 

Print Signer's Name: PAMELA S. ROTH

Service of a copy of the within ^ is hereby admitted

Dated,

^

Attorney(s) for ^